IN THE NATIONAL COMPANY LAW TRIBUNAL, DIVISION BENCH, CHENNAI

CAs/940 & 940-A/CAA/2019

Under Sections 230 to 232 of the Companies Act, 2013

In the matter of *Scheme of Arrangement (Demerger)*

Between

M/s. LISTER TECHNOLOGIES PRIVATE LIMITED

... Demerged Company

And

M/s. LISTER VENTURES PRIVATE LIMITED

... Resulting Company

And

Their Respective Shareholders

Order delivered on 3rd October, 2019

CORAM

CH. MOHD SHARIEF TARIQ, MEMBER (JUDICIAL)
ANIL KUMAR B, MEMBER (TECHNICAL)

For Applicant(s): Mr. Aditya Mukerjee, Counsel

O R D E R

Per: **CH. MOHD SHARIEF TARIQ, MEMBER (JUDICIAL)**

1. Under consideration are Company Applications Nos. *CA/940 & 940-A/CAA/2019* filed under Sections 230 to 232 of the Companies Act, 2013. The prayers made are to

dispense with the convening, holding and conducting of the meetings of the Equity Shareholders, Secured and Unsecured Creditors in relation to the ***M/s. Lister Technologies Private Limited*** *(hereinafter referred to as 'Demerged Company')* and ***M/s. Lister Ventures Private Limited*** (*hereinafter referred to as 'Resulting Company')* Since both the Applications are pertaining to the same Scheme of Arrangement, they are taken together to pass a common order.

2. ***M/s. Lister Technologies Private Limited [CA/940/CAA/2019]***

i. The *Demerged Company* viz., *M/s. Lister Technologies Private Limited* has 13 Equity Shareholder(s). The lists of Equity Shareholders as certified by the Chartered Accountants are placed at page 177 of the typed set filed with the application. The consent Affidavits given by the 11 Equity Shareholders constituting 98% of the total share holding are placed at pages 181 – 243 of the typed set filed with the Application, wherein, it has been

deposed that they do support the Scheme. Therefore, the meeting of the Equity Shareholder(s) of the Demerged Company is allowed to be *dispensed with.*

ii. There are no Secured Creditor(s) in relation to the Demerged Company. The Certificate issued by the Chartered Accountants to this effect is placed at page 169 of the typed set filed with the Application.

iii. There are 3 Unsecured Creditors in relation to the Demerged Company. The Certificate issued by the Chartered Accountants to this effect is placed at page 169 of the typed set filed with the application. The consent Affidavits given by all the three Unsecured Creditors are placed at pages 273 – 289 of the typed set filed with the Application. Therefore, the meeting of the Unsecured Creditor(s) of the Demerged Company is allowed to be *dispensed with.*

3. ***M/s. Lister Ventures Private Limited [CA/940-A/CAA/2019]***

i. The Resulting Company viz., *M/s. Lister Ventures Private Limited.*, has 2 Equity Shareholder(s). The lists of Equity Shareholders as certified by the Chartered Accountants are placed at page 125 of the typed set filed with the application. The consent Affidavits given by the two Equity Shareholders are placed at pages 129 – 139 of the typed set filed with the Application, wherein, it has been deposed that they do support the Scheme. Therefore, the meeting of the Equity Shareholder(s) of the Resulting Company is allowed to be *dispensed with.*

ii. There are no Secured or Unsecured Creditor(s) in relation to the Resulting Company. The Certificate issued by the Chartered Accountants to this effect is placed at page 117 of the typed set filed with the Application.

4. The Registry is directed to issue notice to the concerned Regional Director, Ministry of Corporate Affairs, RoC concerned and Income Tax Authorities including the Assessing Officer of the I.T. Circle in relation to the Applicant Companies separately. In case, the statutory authorities to whom the notice is issued are desirous of making any objection/representation, they may do so within 30 days from the date of receipt of the notice. In case no objection/representation is made, it shall be presumed that they/any of them have/has no objection/representation to make.

5. The Applicant Companies are directed to issue private notice to the said authorities/regulators by way of speed post/hand delivery separately. The proof of sending and effecting the service of notice upon them along with the newspaper publication shall be submitted with the supporting affidavit to this Bench along with Company Petition(s).

6. The Applicant Companies are directed to effect publication of notice separately in the newspapers one in English *"Business Standard"* (Chennai Edition) and another in vernacular *"Maalai Chudar"*, *Tamil* (Chennai Edition) provided the said newspapers have wide circulation in the State of Tamilnadu, having not less than 30+2 days prior to the date of filing of Company Petition. The Applicant Companies are directed to upload the notice on their websites and display the notice on the notice board at their respective Registered Offices. The Registry is also directed to display the notice on the notice board of this Bench.

7. The Applicant Companies shall file the Company Petition(s) on or before 14.11.2019. Accordingly, the Applications stand ***disposed of***.

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ANIL KUMAR B
MEMBER (TECHNICAL)

-SD-
CH. MOHD. SHARIEF TARIQ
MEMBER (JUDICIAL)

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